

Atiya Begum v. Chairman, U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 29 October 2025 · Writ-C No. 36817 of 2025 · **Writ disposed of; petitioner to apply under Clause 4.44; licensee to decide in four weeks.**

HEADNOTE

Widow seeking mutation of her late husband's electricity connection in her name was relegated to a Clause 4.44 application (Annexure-4.11). Writ disposed of without merits adjudication; if filed within two weeks, the application is to be decided in accordance with law within four weeks.

FACTUAL SUMMARY

The petitioner, Atiya Begum, sought a mandamus directing the U.P. Power Corporation to substitute her name for that of her late husband, Sakil Ahmad, in the electricity records, and to decide her application. Standing counsel pointed to Clause 4.44 of the Electricity Supply Code, 2005 and the Annexure-4.11 form, stating that a compliant mutation application would be considered. The petitioner undertook to apply under Clause 4.44 within two weeks. Executive Engineer, Distribution Division-II, Ballia, Purvanchal Vidyut Vitran Nigam Ltd. was impleaded as respondent No. 3.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

mutation of deceased consumer's connection

HOLDING

Mutation of a deceased consumer's name in the electricity record is to be sought by application under Clause 4.44 of the Electricity Supply Code, 2005 in the Annexure-4.11 form. The writ is disposed of with liberty to file that application before respondent No. 3 within two weeks; if filed, respondent No. 2 shall decide it in accordance with law within four weeks. ¶ 4-6

PRINCIPLE TAGS

connection-transfer-requires-clearance-of-arrears-clause-4.44 Widow seeking mutation of her late husband's electricity connection in her name was relegated to a Clause 4.44 application (Annexure-4.11). Writ disposed of without merits adjudication; if filed within two weeks, the application is to be decided in accordance with law within four weeks. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO MUTATION OF THE DECEASED HUSBAND'S CONNECTION IN HER NAME

Court expressly declined to adjudicate on merits; left to the respondent to pass orders on the facts and relevant rules.

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